

25CHCV02548 25CHCV02548

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-02

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Case Number: 25CHCV02548 Hearing Date: July 2, 2026 Dept: F43

Dept. F43

Hearing Date: 07-02-26

Case # 25CHCV02548, Agustiniano

v. Malkhasyan, et al.

Trial Date: None set.

MOTION TO BE RELIEVED

AS COUNSEL

MOVING PARTY: Attorney Vazken Agemian

RESPONDING PARTY: No response was filed.

RELIEF REQUESTED

Attorney Vazken Agemian, counsel of record for plaintiff

Antonio Agustiniano, seeks to be relieved as counsel for that party. Counsel has filed and served the required forms MC-051 and MC-052 on Plaintiff but has failed to file form MC-053 (Order Granting Attorney's Motion to Be Relieved As Counsel) as required by California Rules of Court, rule 3.1362(c), (e).

Counsel's declaration states earlier this year, Plaintiff was provided with a substitution of attorney form for Plaintiff to execute because Plaintiff indicated he wanted to proceed in propria persona in this matter. Counsel's office sent Plaintiff

a completed substitution of attorney form on February 13, 2026, for his review and signature. However, Plaintiff never executed or responded despite multiple telephone calls, messages, and other communication attempts. Moreover, counsel recently learned that Plaintiff was deported to Mexico.

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted.

(People v. Prince, (1968) 268 Cal.App.2d 398, 406.) Although there is no showing of prejudice, counsel has failed to comply with the requirements in California Rules of Court, rule 3.1362(c)-(e).

Therefore, the court denies the motion without prejudice.

CONCLUSION and ORDER

Motion is denied without prejudice.

Attorney Vazken Agemian to give notice.